

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

IFTIKHAR DIN,

Plaintiff,

-against-

BOSTON SCIENTIFIC CORPORATION;
ABRAHAM QUINONES; SUNIL TRIPATHI;
JASON CHAPMAN; TINA NAPOLITANO;
CITY OF NEW YORK; MONET ALLEN;
ROBERT PUMILIA; FRANTZ SOUFFRANT;
and JOHN and JANE DOE 1-10,

Defendants.

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

To the above-named defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with the summons, to serve a notice of appearance, on the plaintiff's attorneys within twenty (20) days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

The nature of this action is, *inter alia*, assault and battery, conspiracy to commit false arrest, false arrest, malicious prosecution, malicious abuse of process, defamation and personal injuries sustained as a result of the defendants' negligence, recklessness and intentional conduct. The relief sought is monetary damages.

Dated: November 16, 2023
New York, New York

ELEFTERAKIS, ELEFTERAKIS & PANEK



By: Gabriel P. Harvis, Esq.
Attorneys for Plaintiff
80 Pine Street, 38th Floor
New York, New York 10005
(212) 532-1116

Failure to respond will result in a judgment against you by default and interest from November 18, 2022.

Defendants

BOSTON SCIENTIFIC
CORPORATION
300 Boston Scientific Way
Marlborough, MA 01752-1234

ABRAHAM QUINONES
280 Rector Place, Apt. 4D
New York, New York 10280

SUNIL TRIPATHI
300 Boston Scientific Way
Marlborough, MA 01752-1234

JASON CHAPMAN
300 Boston Scientific Way
Marlborough, MA 01752-1234

TINA NAPOLITANO
81 Cambridge Drive
Matawan, NJ 07747

CITY OF NEW YORK
100 Church Street
New York, New York

MONET ALLEN
Tax #966933
NYPD 78th Precinct
65 6th Ave
Brooklyn, NY 11217

ROBERT PUMILIA
Tax #947368
NYPD PSA 9
155-09 Jewel Avenue
Flushing, NY 11367

FRANTZ SOUFFRANT
Tax #939510
NYPD 78th Precinct
65 6th Ave
Brooklyn, NY 11217

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Defendants.

VERIFIED COMPLAINT

Index No.:

Date Filed:

Plaintiff Iftikhar Din, by his attorneys, ELEFTERAKIS, ELEFTERAKIS &
PANEK, as and for this Verified Complaint, respectfully alleges, upon information and
belief:

JURISDICTION AND VENUE

1. One or more of the exceptions of § 1602 of the Civil Practice Law and Rules apply to this action.
2. This action is brought pursuant to the laws of the City and State of New York.
3. Jurisdiction is conferred by the laws of the State of New York.

4. Within ninety (90) days after the claim arose, plaintiff served, presented, and duly filed a Notice of Claim, in writing, upon defendant City of New York in accordance with General Municipal Law 50-e, and which set forth the following:

- a. The nature of the claims;
- b. The time when, place where, and manner in which the claim arose; and
- c. The items of damages and injuries sustained.

5. That more than thirty (30) days have elapsed since the presentation of the aforesaid claims, and defendants have neglected and/or refused to make an adjustment and/or payment on plaintiff's claims.

6. Pursuant to G.M.L. § 50-h, the City of New York examined plaintiff on June 8, 2023.

7. That the action has been commenced within one year of the accrual of the causes of action.

JURY DEMAND

8. Plaintiff demands a trial by jury in this action.

PARTIES

9. Plaintiff Iftikhar Din is a resident of the State of New York.

10. Defendant Boston Scientific Corporation ("Boston Scientific") is a foreign corporation incorporated in the State of Delaware and with a principal place of business in Marlborough, Massachusetts. Boston Scientific is the employer of defendants Quinones, Tripathi and Chapman and is responsible under *respondeat superior* for their

tortious conduct as alleged herein. Boston Scientific is also responsible for hiring, training, supervising, disciplining and retaining defendants Quinones, Tripathi and Chapman.

11. Defendants Quinones, Tripathi and Chapman are employees of Boston Scientific and, upon information and belief, residents of the State of New York.

12. Defendant Tina Napolitano (“Napolitano”) is, upon information and belief, a resident of the State of New Jersey.

13. Defendant City of New York (“City”) is a municipal corporation organized under the laws of the State of New York. Defendant City, acting through the New York Police Department (“NYPD”), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel. In addition, at all times here relevant, defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey applicable law.

14. At all times relevant defendants Allen, Pumilia and Souffrant were police officers and supervising police personnel involved in the tortious conduct set forth herein. Defendants Allen, Pumilia and Souffrant are sued in their individual capacity and as employees of defendant City and were acting under color of law.

15. At all times relevant defendants John and Jane Doe 1 through 10 were Police Officers and/or supervisors and/or Boston Scientific employees involved in the tortious conduct set forth herein. John and Jane Doe 1-10 are sued in their individual capacities and as employees of defendant City or Boston Scientific.

16. At all times relevant herein, all individual defendants were acting in the scope of their employment.

STATEMENT OF FACTS

17. On November 18, 2022 at approximately 10:00 a.m., plaintiff, a respected medical doctor who has spent over forty years providing care to his patients and community, was lawfully present at his office at 405 5th Avenue in Brooklyn, New York.

18. Plaintiff received a phone call from defendant Napolitano, a part-time secretary to plaintiff's tenant and long-time colleague, Dr. Salman Haq, who had died suddenly the day before.

19. Defendant Napolitano informed plaintiff that she would be coming to his office to retrieve all of Dr. Haq's equipment, which did not belong to Napolitano and contained sensitive, confidential, HIPAA-protected medical information of patients of both Dr. Haq and plaintiff.

20. Plaintiff informed Napolitano that she did not own Dr. Haq's computers and other equipment and that plaintiff needed to speak with Dr. Haq's family in Texas and take appropriate steps to protect the sensitive information before it could be released.

21. Later that day, Napolitano and several of the other defendants, including at least Quinones, Pumilia and Allen, arrived at plaintiff's office and aggressively demanded that plaintiff relinquish the equipment, falsely threatening him that it would be criminal to retain it.

22. Plaintiff clearly and truthfully explained to the defendants why he was unable to instantly release the equipment and pleaded with them to allow for him to make appropriate arrangements for its proper release.

23. However, upon information and belief, defendants Napolitano, Boston Scientific, Quinones, Tripathi and Campbell sought Haq's equipment to improperly obtain and access information, including protected health information, stored therein for illegitimate reasons and illicit personal and financial gain.

24. In furtherance of that unlawful goal, defendants Napolitano, Boston Scientific, Quinones (who was, upon information and belief, an auxiliary NYPD officer), Tripathi and Campbell conspired with the City of New York employees, including Allen, Pumilia and Souffrant to falsely accuse plaintiff of larceny and criminal possession of stolen property, despite the absence of any evidence or basis to support such allegations.

25. Thus, although defendants were expressly aware of plaintiff's valid and lawful justification to maintain temporary possession of Dr. Haq's equipment, that defendants did not own the equipment, that plaintiff lacked any larcenous intent, that the equipment at issue had not been stolen and that probable cause was lacking, defendants caused plaintiff to be tightly handcuffed and arrested in public.

26. In the course of seizing and arresting plaintiff, defendants including Pumilia and Allen subjected him to assault and battery.

27. The public false arrest of plaintiff, a law-abiding doctor and pillar of his community, caused him to needlessly suffer immense humiliation, trauma, reputational harm and emotional distress. Defendants' false public accusations against plaintiff further defamed and damaged him.

28. Defendants provided false information to prosecutors indicating, inter alia, that Napolitano was plaintiff's office manager and that there was reason to believe plaintiff had committed theft and the possession of stolen property. Defendants were aware that none of these allegations were true.

29. Defendants maliciously caused legal process to issue against plaintiff to improperly seize the Haq equipment for illicit purposes.

30. As a result of defendants' conspiratorial misconduct as described above plaintiff, who had never previously been arrested, was held overnight in disgusting conditions at

a police precinct before ultimately being released with a Desk Appearance Ticket and compelled to return to court under prosecution on false charges.

31.All charges against plaintiff were ultimately dismissed.

32.By reason of the foregoing, plaintiff suffered damage as a result of defendants' actions. Plaintiff suffered, *inter alia*, loss of liberty, pain and suffering, fear, pain, bodily injury, emotional distress, lost wages, damage to his personal and professional reputation, mental anguish, and anxiety.

FIRST CLAIM
Assault and Battery

33.Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

34.By their conduct, as described herein, the defendants are liable to plaintiff for having assaulted and battered him.

35.Defendant City of New York, as an employer of the individual defendant officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

36.As a direct and proximate result of the misconduct and abuse of authority stated above, plaintiff sustained the damages alleged herein.

SECOND CLAIM**Conspiracy to Commit False Imprisonment under New York State Law; False Imprisonment**

37. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

38. By their conduct, as described herein, the defendants are liable to plaintiff for having conspired to falsely imprison him and for having falsely imprisoned him in the absence of probable cause in violation of New York State law.

39. As a direct and proximate result of the misconduct and abuse of authority stated above, plaintiff sustained the damages alleged herein.

THIRD CLAIM**Conspiracy to Commit Malicious Prosecution under New York State Law; Malicious Prosecution**

40. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

41. By their conduct, as described herein, the defendants are liable to plaintiff for having conspired to maliciously prosecute him and for having maliciously prosecuted plaintiff in violation of New York State law.

42. The defendants initiated a continued the prosecution of plaintiff in the absence of probable cause and with actual malice, and the false charges were favorably terminated.

43.As a direct and proximate result of the misconduct and abuse of authority stated above, plaintiff sustained the damages alleged herein.

FOURTH CLAIM

Negligence; Negligent Hiring/Training/Retention

44.Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

45.Defendant City, through the NYPD, and defendant Boston Scientific owed a duty of care to plaintiff to prevent the conduct alleged, because under the same or similar circumstances a reasonable, prudent, and careful person should have anticipated that injury to plaintiff or to those in a like situation would probably result from the foregoing conduct.

46.Upon information and belief, all of the individual defendants were unfit and incompetent for their positions.

47.The individual defendants' conduct, including the manner of pursuit and apprehension of plaintiff, was negligent, grossly negligent, reckless and intentional.

48.Upon information and belief, defendants City and Boston Scientific knew or should have known through the exercise of reasonable diligence that the individual defendants who were their employees were potentially dangerous.

49. Upon information and belief, defendant City and Boston Scientific's negligence in screening, hiring, training, disciplining, and retaining these defendants and the individual defendants' own negligence proximately caused each of plaintiff's injuries.

50. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

FIFTH CLAIM

Negligent or Intentional Infliction of Emotional Distress

51. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

52. By reason of the foregoing, the defendants, acting in their capacities as NYPD officers and Boston Scientific employees, and within the scope of their employment, along with defendant Napolitano, each were negligent (or intentional) in committing conduct that inflicted emotional distress upon plaintiff.

53. The negligent (or intentional) infliction of emotional distress by these defendants was unnecessary and unwarranted in the performance of their duties.

54. Defendants, their officers, agents, servants, and employees were responsible for the negligent (or intentional) infliction of emotional distress upon plaintiff. Defendant City and Boston Scientific, as employer of each of the defendants, are responsible for their wrongdoings under the doctrine of *respondeat superior*. Defendant Napolitano is likewise responsible for her own conduct.

55. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

SIXTH CLAIM

Violation of Plaintiff's Administrative Code § 8-802 Rights

56. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

57. The actions of defendants violated plaintiff's rights as defined in Section 8-802 of Chapter 8 of the New York City Administrative Code.

58. As such, immunity is not a defense to the violations of plaintiff's rights and plaintiff demands and is entitled to the relief described in Section 8-805.

59. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

SEVENTH CLAIM

Defamation

60. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

61. By their conduct, as described herein, defendants are liable to plaintiff for having committed defamation under the laws of the State of New York.

62. Defendants made false, disparaging and public statements about plaintiff, including but not limited to the false claim that plaintiff committed crimes.

63. Defendants conduct in making such false, disparaging and public statements was intentional or at the very least negligent.

64. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged, including profound and permanent reputational damage.

EIGHTH CLAIM
Malicious Abuse of Process

65. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

66. The individual defendants issued legal process to place plaintiff under arrest.

67. The individual defendants arrested plaintiff in order to obtain collateral objectives outside the legitimate ends of the legal process, to wit, to improperly seize the Haq equipment and the data it contained.

68. The individual defendants acted with intent to do harm to plaintiff without excuse or justification.

69. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

NINTH CLAIM
Failure to Intervene

70. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

71. Those individual defendants who were present had a reasonable opportunity to intervene and an affirmative obligation to do so but failed to act, rendering them liable to plaintiff under New York State law.

72.As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

TENTH CLAIM
Punitive Damages & Attorney's Fees

73.Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

74.The actions of the individual defendants herein-above alleged, were malicious, willful and grossly negligent.

75.Accordingly, plaintiff is entitled to punitive damages.

PRAYER FOR RELIEF

WHEREFORE, plaintiff respectfully requests judgment for an amount which exceeds the jurisdictional limits of all other Courts which would otherwise have jurisdiction herein against defendants as follows:

- (a) Compensatory damages against all defendants, jointly and severally;
- (b) Punitive damages against the individual defendants, jointly and severally;
- (c) Reasonable attorneys' fees and costs, and with interest from the date of the incident;
- (d) All relief afforded under Section 8-805 of Chapter 8 of the New York City Administrative Code; and
- (e) Such other and further relief as this Court deems just and proper.

Dated: November 16, 2023
New York, New York

ELEFTERAKIS, ELEFTERAKIS & PANEK



By: Gabriel P. Harvis, Esq.
Attorneys for Plaintiff
80 Pine Street, 38th Floor
New York, New York 10005
(212) 532-1116

ATTORNEY'S VERIFICATION

STATE OF NEW YORK)
) SS:
COUNTY OF NEW YORK)

The undersigned, an attorney admitted to practice in the Courts of the State of New York, and an attorney of the law firm of ELEFTERAKIS, ELEFTERAKIS, & PANEK attorneys of record for the claimant herein, affirms:

That he has read the attached SUMMONS AND COMPLAINT and the same is true to his own knowledge, except as to the matters alleged on information and belief, and as to those matters, he believes them to be true to the best of his knowledge.

That affirmant's sources of information are investigation and files maintained in your affirmant's law office.

That this verification is made by your affirmant due to the fact that claimant does not presently reside within the county in which your affirmant maintains his law office or is presently outside the county in which your affirmant maintains his law office.

The undersigned affirms that the foregoing statements are true, under penalties of perjury.

Dated: November 16, 2023
New York, New York



Gabriel P. Harvis, Esq.